

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jacqueline Levy(F)	Team: Team # 5	CCRB Case #: 201105121	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 04/22/2011 12:40 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/22/2012	Precinct: 46		
Date/Time CV Reported Fri, 04/22/2011 1:15 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 04/22/2011 1:15 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Mary King	04924	936872	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Hector Gallardo	03013	936634	046 PCT
2. POM Scott Monier	23049	942228	046 PCT
3. POM Claude Staten	05269	891057	046 PCT
4. POF Catherin Thomas	23675	946318	046 PCT
5. POM Luis Reyes	23403	941122	046 PCT
6. POF Julissa Flores	24315	938488	046 PCT
7. POF Angela Polancobrito	04956	939240	046 PCT
8. POM John Obrien	07364	899667	046 PCT
9. POM Louis Ortiz	12587	934341	046 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Mary King	Abuse: Sergeant Mary King forcibly removed § 87(2)(b) to the hospital.	A . Exonerated

Case Summary

On April 22, 2011, an anonymous caller filed this complaint with the CCRB via the call processing system (encl. 4A-B). On April 22, 2011, at 12:40 a.m., officers responded to § 87(2)(b) § 87(2)(b), in the Bronx, and took § 87(2)(b) to § 87(2)(b).

The following allegation resulted:

- **Allegation A – Abuse of Authority:** Sergeant Mary King forcibly removed § 87(2)(b) to the hospital. § 87(2)(g) It is therefore recommended that **allegation A be closed as exonerated.**

Results of Investigation

Civilian Statement

Complainant: Anonymous

- *The anonymous complainant is a female who resides at* § 87(2)(b)

CCRB Testimony (encl. 4A-B)

On April 22, 2011, the complainant filed this complaint with the CCRB via the call processing system. On April 22, 2011, at approximately 1:00 a.m., at § 87(2)(b) § 87(2)(b) in the Bronx, a § 87(2)(b) old female identified through investigation as § 87(2)(b) was beaten up and pushed into the elevator by six or seven officers, one of whom slammed her head against the wall. § 87(2)(b) grandmother told the officers that § 87(2)(b) had choked her. There were four female witness officers. She observed a visible bump to § 87(2)(b) right temple. She stated that these officers were in vehicle number 4819 and that they arrested § 87(2)(b).

On April 26, 2011, the undersigned investigator mailed a please call letter addressed to the resident of § 87(2)(b) in the Bronx. The letter has not been returned by the United States Postal Service and the complainant has not responded at the time of this report.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) old Hispanic female.

CCRB Testimony

§ 87(2)(g)

Attempts to Contact Civilians

On April 26, 2011, the undersigned investigator mailed a please call letter to § 87(2)(b) § 87(2)(b) in the Bronx. A resident of § 87(2)(b) location called and left a voicemail message stating that she and her family did not know of this incident.

NYPD Statements

§ 87(2)(g)

NYPD Documents

SPRINT Report (encl. 5A-C)

The Sprint report shows that 46th Precinct sectors A, C, and E and patrol sergeant 2 responded to an assault in progress at § 87(2)(b) at 12:40 a.m. At 12:42 a.m., EMS responded and at 12:47 a.m., the sergeant called for an emergency services unit to respond to the location. At 12:51 a.m., it was determined that an emergency services unit truck was unnecessary.

Aided Report (encl. 6A-E)

The aided report shows that § 87(2)(b) old § 87(2)(b) was removed to § 87(2)(b) as an emotionally disturbed person who was had attempted to harm others, verbally threatened to harm others, and was a physical threat to others. § 87(2)(b) was handcuffed for safety.

46th Precinct ARCS (encl. 7A-E)

ARCS show that PO Hector Gallardo and PO Scott Monier were assigned to vehicle number 4819, PO John O'Brien and PO Angela Polanco-Brito were assigned to sector AB, PO Catherin Thomas and PO Luis Reyes were assigned to sector CD, and PO Louis Ortiz and PO Julissa Flores were assigned to sector EF. Sergeant Mary King was patrol sergeant #2 and PO Claude Staten was the patrol sergeant #2's operator.

Arrest Log for the 46th Precinct on April 22, 2011 (encl. 8)

No juvenile arrests were made in the 46th Precinct on April 22, 2011.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of May 6, 2011 with regard to the incident (encl. 9).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint to which § 87(2)(b) has been a party (encl. 3).

Subject Officer CCRB History

- Sergeant Mary King has been a member of the service for 6 years and there are no substantiated allegations against her (encl. 2).

Conclusion

Identification of Subject Officers

- The Sprint report and ARCS identify officers PO Gallardo, PO Monier, PO O'Brien, PO Polanco-Brito, PO Thomas, PO Reyes, PO Ortiz, PO Flores, PO Staten, and Sergeant King as being assigned to the units that responded to the location. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Sergeant Mary King forcibly removed § 87(2)(b) to the hospital.

An anonymous caller reported that § 87(2)(b) had been slammed into a wall and pushed into the elevator by six or seven male officers and that § 87(2)(b) grandmother claimed to have been choked by § 87(2)(b). The aided report confirms that § 87(2)(b) was a danger to herself and others. It also indicates that § 87(2)(b) required medical attention, was placed in handcuffs, and was removed to § 87(2)(b). Because of the violent nature of § 87(2)(b) behavior it was necessary for officers to restrain § 87(2)(b) so she could be treated by EMS. The arrest log for the 46th Precinct shows that no juveniles were arrested on April 22, 2011, § 87(2)(g). § 87(2)(g) Patrol Guide, section 216-05 states that officers may use physical force “to the extent necessary to restrain the subject until delivered to a hospital or detention facility” and that handcuffs may be used if the individual is violent or is resisting (encl. 1A-D). § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **allegation A be closed as exonerated.**

Team: 5

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Investigator:	<u>Jacqueline Levy</u>	<u></u>
	Signature	Print Date

Supervisor:	<u></u>	<u></u>
	Title/Signature	Print Date

Reviewer:	<u></u>	<u></u>
	Title/Signature	Print Date

Reviewer:	<u></u>	<u></u>
	Title/Signature	Print Date